

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PELTON INTERACTIVE, INC., *Complainant*

v.

FLEXPORT INTERNATIONAL LLC, *Respondents*.

DOCKET NO. 24-19

Served: July 3, 2025

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

**ORDER ON RESPONDENT’S REQUEST FOR EXPEDITED HEARING ON CLARIFICATION OF ORDER
DATED JUNE 30, 2025**

On July 1, 2025, Respondent Flexport International, LLC, (“Flexport”) filed Respondent’s Request for Expedited Hearing on Clarification of Order Dated June 30, 2025, which resolved all outstanding motions in advance of the upcoming briefing schedule. (Dkt. 72.) The order, *inter alia*, directed Flexport to respond to Complainant Peloton Interactive, Inc.’s (“Peloton”) Request for Production No. 4. By email dated July 1, 2025, the parties were ordered to file any response to the expedited hearing request no later than July 2, 2025, at 5 p.m. Peloton filed Complainant Peloton Interactive, Inc.’s Response to Flexport’s Request for Expedited Hearing on Clarification of order dated June 30, 2025 on July 2, 2025, at 3:46 p.m. For the reasons set forth below, the request for expedited hearing is denied, and the order is clarified as set forth herein.

Flexport seeks clarification of the scope of the response required by the June 30, 2025, order to Peloton’s Request for Production No. 4, arguing that the request was limited to communications between Flexport and third parties by Judge Crovella’s March 26, 2025, Memorandum Order on Motion for Protective Order, Cease and Desist Remedy, and Motions to Compel that was entered following a status conference held on March 25, 2025. (Dkt. 47.) Flexport argues that this limitation was acknowledged by the parties in their joint status report filed April 4, 2025, and Peloton’s subsequent unauthorized status report dated June 6, 2025. (Dkt. 50 and 67.) Flexport states in its motion that Peloton opposes the request for expedited hearing on the ground that the order is clear and no clarification is required.

In its opposition, Peloton argues that no expedited hearing is required because the June 30, 2025, order is clear, it has consistently maintained that the documents sought in Request for Production No. 4 are relevant to its claim, citing its motion to compel filed January 14, 2025, and asserts that it did not waive its argument when it agreed to abide Judge Crovella’s March 26, 2025, order. In its motion to compel, Peloton asserted that “documents and information pertaining to Flexport’s movement of Peloton’s goods—including its use of and relationships with subcontractors engaged in that process—[are] directly relevant to Peloton’s claims within the meaning of Rule

141(e).” (Dkt. 32 at 8.) It asserts that discovery and depositions have only reinforced the relevance and importance of the requested documents.

In support of its argument that the requested documents are relevant to its claim, Peloton asserts: “Flexport has claimed that its demurrage and detention (“D&D”) tariff application is contingent upon the underlying vessel carriers application of free time, and that it relies on its truckers to communicate and dispute charges on its behalf. Accordingly, assessing the reasonableness of Flexport’s D&D assessment requires a review and analysis of documents and records related to Flexport’s dealings with its third-party service providers, including agreements, work orders, and invoices.” (Opposition at n. 2.)

Pelton’s Request for Production No. 4 states:

Request for Production 4: Produce all Documents and records in connection with the Peloton Shipments, including all contracts and agreements, service agreements with Ocean Carriers, negotiated service arrangements (NSAs), negotiated rate arrangements (NRAs), freight invoices, bills of lading, waybills, Documents and Container management data, Motor Carrier work orders, Motor Carrier invoices, Motor Carrier bills of lading, linehaul bills of lading, freight invoices, Demurrage and Detention invoices, Marine and Inland Terminal data and records, railroad records, Motor Carrier records, and payment records.

The Memorandum Order on Motion for Protective Order, Cease and Desist Remedy, and Motions to Compel provided, *inter alia*, that Flexport produce the following documents:

Respondent is **ORDERED** to provide the communications between it and contractors such as motor carriers and railroads, as well as marine terminal operators and ocean carriers, regarding the movement of Peloton containers/shipments for which invoices issued beginning in May 2021.

(Dkt. 47 at 1.) The order further provided:

It is **FURTHER ORDERED** that the parties file a Joint Status Report (“JSR”) by April 4, 2025, stating whether any of the items sought through their motions to compel have been resolved, are withdrawn, or are modified based on the March 25, 2025, conference, and based on the rulings above, which also apply to items identified in the respective motions to compel.

(Dkt. 47 at 2.)

In the Joint Status Report filed April 4, 2025, Peloton states with respect to Request for Production No. 4 that it has not received all responsive documents, including but not limited to communications with underlying service providers, shipping documents, internal notes from the Flexport Platform, and documentation of changes to detention and demurrage charges on Flexport’s platform. (Dkt. 50 at 2-4.) Peloton also states that “in accordance with the March 26 Order, Peloton is solely seeking the underlying communications between Flexport and the underlying service providers.” (Dkt. 50 at n. 5.)

Based on the foregoing, the undersigned finds in accordance with the doctrine of the law of the case that the June 30, 2025, Order on Pending Motions and Complainant's Unilateral Status Report and Amending Scheduling Order is subject to the limitations set forth in Judge Crovella's March 26, 2025, order and the parties' Joint Status Report filed April 4, 2025. (Dkt. 47 and 50.) The undersigned also finds that Peloton waived its argument that the requested documents are relevant to its claim and that discovery has reinforced its need for the documents by not asserting this position in the April 4, 2025, status report. Accordingly, the undersigned finds the record is clear and no hearing is required, but that clarification of the June 30, 2025, order is appropriate.

It is **ORDERED** that Respondent's Request for Hearing is **DENIED**.

It is **FURTHER ORDERED** that the June 30, 2025, Order on Pending Motions and Complainant's Unilateral Status Report and Amending Scheduling Order is **CLARIFIED** to provide that Respondent's response to Complainant's Request for Production No. 4 is limited to communications between Flexport and the underlying service providers in accordance with Judge Crovella's March 26, 2025, order and the agreement of the parties in their Joint Status Report (Dkt. 47 and 50).

Mary A. Hervey -S

Digitally signed by Mary A. Hervey -

S

Date: 2025.07.03 10:54:56 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge